

LIABILITY AND PHOTO/MEDIA RELEASE - READ BEFORE SIGNING

In consideration of being allowed to participate in any way with Santa's Knights, Inc. and/or Gladiators NYC, its related events and activities, I, _____, for myself or my child if under the age of 18, the undersigned, acknowledge, appreciate, and agree that:

1. The risk of injury from the activities involved in this program is significant, including the potential for permanent paralysis and death, and while particular skills, equipment, and personal discipline may reduce this risk, the risk of serious injury does exist; and,
2. I KNOWINGLY AND FREELY ASSUME ALL SUCH RISKS, both known and unknown, EVEN IF ARISING FROM THE NEGLIGENCE OF THE RELEASEES or others, and assume full responsibility for my participation; and,
3. I willingly agree to comply with the stated and customary terms and conditions for participation. If, however, I observe any unusual significant hazard during my presence or participation, I will remove myself from participation and bring such to the attention of Santa's Knights, Inc. and/or Gladiators NYC immediately; and,
4. I, for myself and on behalf of my heirs, assigns, personal representatives and next of kin, HEREBY RELEASE, INDEMNIFY, AND HOLD HARMLESS Santa's Knights, Inc. and/or Gladiators NYC their officers, officials, agents and/or employees, volunteers, other participants, sponsoring agencies, sponsors, advertisers, and, if applicable, owners and lessors of premises used for the activity ("Releasees"), WITH RESPECT TO ANY AND ALL INJURY, DISABILITY, DEATH, or loss or damage to person or property associated with my presence or participation, WHETHER ARISING FROM THE NEGLIGENCE OF THE RELEASEES OR OTHERWISE, to the fullest extent permitted by law.

Moreover, I, _____, for myself or my child if under the age of 18, hereby irrevocably consent to and authorize the use by Santa's Knights, Inc. and/or Gladiators NYC of any and all photographs, videos, images, voice recordings or other media taken of me or my child including derivative works thereof (collectively, the "Images"). This authorization includes permission to reproduce, publicize, broadcast or display the Images, with or without my name, throughout the world, an unlimited number of times in perpetuity in any and all media, now known or hereafter invented without any form of compensation to me or my child.

I hereby release and discharge Santa's Knights, Inc. and/or Gladiators NYC, its officers, employees, licensees, and affiliates from any and all claims, actions, suits or demands of any kind or nature whatsoever, in connection with the use of the Images and the reproduction thereof as aforesaid.

I understand and agree that Santa's Knights, Inc. and/or Gladiators NYC will be the exclusive owner of all rights, including, but not limited to, all copyrights, in and to the Images in whole or part, throughout the universe, in perpetuity, in any medium now known or hereafter developed, and to license others to so use them in any manner Santa's Knights, Inc. and/or Gladiators NYC may determine in its sole discretion, without any obligation to me. I hereby waive any right that I may have to inspect and/or approve the use of the Images or any reproductions thereof, by Santa's Knights, Inc. and/or Gladiators NYC.

I HEREBY ACKNOWLEDGE THAT I AM EIGHTEEN (18) YEARS OF AGE OR OVER AND I HAVE READ THIS RELEASE OF LIABILITY AND ASSUMPTION OF RISK AGREEMENT, AND PHOTO/MEDIA RELEASE AGREEMENT, FULLY UNDERSTAND ITS TERMS, UNDERSTAND THAT I HAVE GIVEN UP SUBSTANTIAL RIGHTS BY SIGNING IT, AND SIGN IT FREELY AND VOLUNTARILY WITHOUT ANY INDUCEMENT.

x _____ Date Signed: _____
PARTICIPANT'S SIGNATURE